

25STCV27291 25STCV27291

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C08%2F06%2F2026

Source SHA-256: 347cdaef12a47314b467ff2769107e9b73514bc36a1938ce66ab3c3d95a57043

Case Number: 25STCV27291 Hearing Date: August 6, 2026 Dept: 512

HEARING DATE: Thurs., August 6, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Krasner

v. Toyota Motor Sales, USA, COMP.

FILED: 09-17-25

Inc.,

et al.

CASE NUMBER: 25STCV27291

NOTICE: OK

PROCEEDINGS: MOTIONS

TO COMPEL FURTHER DISCOVERY RESPONSES TO SPECIAL INTERROGATORIES; FORM
INTERROGATORIES; REQUESTS FOR PRODUCTION; REQUESTS FOR ADMISSIONS

MOVING PARTY: Defendant

Toyota Motor Sales, USA, Inc.

RESP. PARTY: Plaintiff Karen Krasner

MOTIONS TO COMPEL FURTHER DISCOVERY RESPONSES TO SPECIAL INTERROGATORIES,
FORM INTERROGATORIES, REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSIONS

(CCP §§ 2030.300, 2031.310, 2033.290)

TENTATIVE RULING:

Toyota Motor Sales, USA,
Inc.'s Motion to Compel Plaintiff's Further Responses to Form Interrogatories;
Motion to Compel Plaintiff's Further Responses to Special Interrogatories;
Motion to Compel Plaintiff's Further Responses to Requests for Production; and
Motion for an Order that the Truth of Matters Specified in Defendant's Requests
are Deemed Admitted are GRANTED.

Plaintiff is to provide
further code-compliant, verified responses to the discovery requests within 30
days of this Court's order.

Plaintiff and Plaintiff's
counsel are to pay \$2,500.00 in sanctions to defense counsel within 30 days of
this Court's order.

Moving party is ordered to
give notice.

MOTIONS SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITIONS: Filed
on June 2, 2026 ☐ Late ☐ None

REPLIES: Filed
on June 9, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On September 17, 2025, Plaintiff Karen Krasner ("Plaintiff") filed the instant Lemon Law action against Defendants Toyota Motor Sales, U.S.A., Inc. ("Toyota Motor Sales") and Toyota of Hollywood ("Hollywood Toyota") ("Defendants") and Does 1-10.

On December 15, 2025, Hollywood Toyota filed an Answer.

On March 13, 2026, Toyota Motor Sales filed an Answer.

On April 13, 2026, Toyota Motor Sales filed the instant Motion to Compel Plaintiff's Further Responses to Form Interrogatories ("FROGs Motion"); Motion to Compel Plaintiff's Further Responses to Special Interrogatories ("SROGs Motion"); Motion to Compel Plaintiff's Further Responses to Requests for Production ("RPDs Motion"); and Motion for an Order that the Truth of Matters Specified in Defendant's Requests are Deemed Admitted ("RFAs Motion") (collectively, the "Motions"). Toyota Motor Sales seeks sanctions in conjunction with all Motions.

On June 2, 2026, the Court continued the hearings on the Motions.

That same day, Plaintiff filed Oppositions to the Motions.

On June 9, 2026, Toyota Motor Sales filed Replies to the Motions.

On June 16, 2026, the Court called an Informal Discovery Conference ("IDC") for hearing; however, Plaintiff failed to appear for the IDC. (6/16/26 Order.) As such, the Court placed the IDC off calendar and ordered the Motions to remain on calendar. (6/16/26 Order.)

On June 29, 2026, the Court continued the hearings on the Motions.

II.

Legal

Standard & Discussion

A. Discovery

Requests

In the Motions, Toyota

Motor Sales moves to compel further responses to its FROGs, SROGs, RPDs, and RFAs propounded on Plaintiff on January 26, 2026. (Motions, Sep. Statements.)

In the Oppositions, Plaintiff contends

that supplemental responses to all written discovery were provided to Toyota Motor Sales on June 2, 2026, and thus the instant Motions are moot. Further, Plaintiff states that sanctions are unwarranted as there was a transition at Plaintiff's counsel's firm and, during that transition, certain case assignments and associated tasks including supplemental discovery requests were inadvertently overlooked. (Opps., Wong Decl.)

In the Replies, Toyota Motor Sales

contends that the Motions are not moot, and Plaintiff's supplemental responses are still deficient as they are unverified and contain objections despite the original responses being untimely served. (See Replies.) Given the deficient initial and supplemental responses, Toyota Motor Sales states sanctions are still warranted as to all Motions.

Here, the Court finds that Plaintiff

provided supplemental responses in advance of the instant Motions' hearing date. (Opp., Wong Decl., Exhs. 7-10.)

However, the

Court finds the supplemental responses, which contain both objections and substantive responses, are unverified. Written discovery responses must be verified unless the response contains only objections. (See Code Civ. Proc., §§ 2030.250, 2030.300, 2031.250, 2031.310, 2033.240, 2033.290.) Thus, the Court finds all the supplemental responses are deficient.

Given the

Motions are timely and procedurally satisfactory, and Plaintiff's supplemental responses are unverified, the Court finds orders requiring further responses to

all the subject written discovery are warranted.

To the extent Toyota Motor Sales also contends the discovery responses contain waived objections, the Court disagrees. The parties do not dispute that the written discovery requests were served on January 21, 2026 (see Motions, Ely III Decl.; Opps., Wong Decl.); as such, Plaintiff's responses were due no later than February 23, 2026, accounting for 30 days plus two calendar days since the discovery requests were served by electronic service. (See Code Civ. Proc., §§ 2030.260, 2031.260, 2033.250.) The parties do not dispute that Plaintiff served responses on February 23, 2026. (See Motions, Ely III Decl.; Opps., Wong Decl.) As such, the initial responses were timely, and objections were not waived.

Finally, insofar as the RFAs Motion is requesting the Court deem all RFAs admitted, the Court finds this request unsupported and impermissible given the status of the requests and responses provided.

Thus, the Motions are GRANTED. Plaintiff is to provide further code-compliant and verified responses to the discovery requests within 30 days of this Court's order.

B. Sanctions

The Court "shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response [], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (See Code Civ. Proc., §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

Here, the Court granted all the

Motions, and the notices of motion all comply with Code of Civil Procedure section 2023.040. Thus, sanctions are warranted against Plaintiff and/or Plaintiff's counsel.

Toyota Motor Sales requests \$1,335.00 in sanctions for each Motion, reflecting one hour incurred bringing each Motion; and two hours incurred reviewing the Opposition, drafting the Reply, and attending the Motion hearing for each Motion, billed at \$425.00 per hour, plus \$60.00 in filing fees for each Motion. (Motions, Ely III Decls.)

Given the nature of the Motions and Plaintiff's provision of supplemental responses prior to the hearing date, the Court GRANTS Toyota Motor Sales' request for sanctions in the total reduced amount of \$2,500.00 against Plaintiff and Plaintiff's counsel.

III.

Conclusion & Order

For the foregoing reasons,
Toyota Motor Sales, USA, Inc.'s Motion to Compel Plaintiff's Further Responses to Form Interrogatories; Motion to Compel Plaintiff's Further Responses to Special Interrogatories; Motion to Compel Plaintiff's Further Responses to Requests for Production; and Motion for an Order that the Truth of Matters Specified in Defendant's Requests are Deemed Admitted are GRANTED.

Plaintiff is to provide
further code-compliant, verified responses to the discovery requests within 30 days of this Court's order.

Plaintiff and Plaintiff's
counsel are to pay \$2,500.00 in sanctions to defense counsel within 30 days of this Court's order.

Moving party is ordered to
give notice.